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| 5 | <p><b>Pacific Coast Builders, Inc. vs. Tuck</b></p> <p><b>2024-01420133</b></p>    | <p><b>Motion for Attorney Fees</b></p> <p>Defendants’ counsel filed a Notice of Automatic Stay on 4/3/26 which states the case is stayed “with regard to all parties” due to Chapter 11 bankruptcy proceedings by Defendant/Cross-Complainant David Tuck. Moreover, Cross-Complainants’ reply filed on 5/11/26 states the case is stayed. However, a bankruptcy stay generally applies only to actions against the debtor. (<i>In re Bidermann Industries U.S.A., Inc.</i> (Bankr. S.D.N.Y. 1996) 200 B.R. 779, 782; <i>Higgins v. Superior Court</i> (2017) 15 Cal.App.5th 973, 975 [“As a matter of law, the automatic stay that applied to claims against debtor Powell did not apply to Cabandong's claims against nondebtor Higgins”].)</p> <p><b>Tentative Ruling:</b> Cross-Complainants’ Motion for Attorney Fees is CONTINUED to 6/15/26. The parties shall each file a supplemental brief, not to exceed seven pages, no later than 6/1/26, addressing the following issues: 1). Does the bankruptcy stay apply to Plaintiff’s action against Defendant Heather Tuck? 2). Does the stay apply to the Tucks’ Cross-Complaint?</p> |
| 6 | <p><b>Tsirtsis vs. Pacific Hospital Long Beach</b></p> <p><b>2024-01427440</b></p> | <p><b>Motion to Be Relieved as Counsel of Record</b></p> <p>Moving attorney states withdrawal is necessary under Rules of Professional Conduct 1.16(b)(4)-(5), which provide for terminating representation on the following grounds:</p> <p>“(4) the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively;</p> <p>(5) the client breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable* warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation;”</p> <p><b>Tentative Ruling:</b> The motion of attorney Lawrence Hoodack to withdraw as attorney of record for Plaintiff James Dimitri Tsirtsis is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.</p>                                                                   |

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| 7 | <p><b>Sozer vs. Yoshiharu Global Co.</b></p> <p><b>2024-01427440</b></p>              | <p><b>Motion to Be Relieved as Counsel of Record</b></p> <p>Moving attorney has not shown he has complied with the requirements of California Rules of Court, rule 3.1362. The proof of service filed on 2/25/26 reflects only proof of service on counsel for Plaintiff by electronic mail. (ROA 29.) It does not appear a proof of service on the client has been filed.</p> <p><b>Tentative Ruling:</b> The motion of attorney Chanhoo C. Joo on behalf of himself and Law Offices of Chanhoo Joo to be relieved as counsel for defendant Yoshiharu Global Co. is CONTINUED to June 8, 2026 at 1:45 p.m., in this department. Mr. Joo is ordered to re-serve all moving papers along with a proof of service within five court days before the new hearing date. Moving attorney to give notice of new hearing date.</p> |
| 8 | <p><b>Cavalli vs. Hanken</b></p> <p><b>2025-01513300</b></p>                          | <p><b>Motion to Be Relieved as Counsel of Record</b></p> <p>This motion was continued because Avrek Law Firm failed to file the mandatory proposed Order. The Court ordered the law firm to file mandatory form MC-053 prior to the new hearing date and re-serve all moving papers, not just the missing form. (CRC 3.1362, subd. (d).) It appears the firm filed an entirely new motion which has been scheduled for 8/3/26. Therefore, this motion continued to 5/18/26 should be taken off calendar.</p> <p><b>Tentative Ruling:</b> The motion of Avrek Law Firm to withdraw as attorney of record for Plaintiff Nazila Safavi is OFF CALENDAR. Avrek Law Firm filed a new motion which scheduled for 08/03/2026.</p>                                                                                                  |
| 9 | <p><b>Guillermo Salanueva vs. General Motors, LLC</b></p> <p><b>2022-01287084</b></p> | <p><b>Motion for Attorney Fees</b></p> <p>Plaintiff Jose Luis Guillermo Salanueva's moves for Attorney's Fees, Costs, and Expenses.</p> <p><i>Timeliness of Motion:</i></p> <p>Defendant argues the Motion for attorneys' fees and costs is untimely.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |